

Girija Shankar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 11639 of 2017 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ raising a dispute over demand of electricity charges by the distribution corporation was not entertained. The High Court held that the petitioner must avail Clause 6.5 of the Electricity Supply Code, 2005, and dismissed the petition with that observation.

FACTUAL SUMMARY

Girija Shankar approached the Allahabad High Court by writ petition against the State of Uttar Pradesh and the electricity corporation, raising a dispute about a demand of electricity charges. Counsel for the Corporation submitted that the petitioner should pursue the remedy under Clause 6.5 of the Electricity Supply Code, 2005 rather than invoke writ jurisdiction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

writ not entertained for electricity charge demand

HOLDING

A consumer disputing a demand of electricity charges must avail the remedy under Clause 6.5 of the Electricity Supply Code, 2005; a writ petition raising that dispute is not entertained. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ raising a dispute over demand of electricity charges by the distribution corporation was not entertained. The High Court held that the petitioner must avail Clause 6.5 of the Electricity Supply Code, 2005, and dismissed the petition with that observation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY CHARGES DEMANDED

The Court declined to entertain the writ and left the petitioner to Clause 6.5 without examining the demand. ¶ 1